# Purchase Order

Fiscal Year 2025 Page: 1 of: 1

| THIS NUMBER MUST APPEAR ON ALL INVOICES, PACKAGES AND SHIPPING PAPERS. | |
|---|---|
| Purchase Order # | 2500560 |

BILL TO

VENDOR

DEMTEK LLC
PERSONAL INFORMATION
Email: PERSONAL INFORMATION

SHIP TO

ENVIRONMENTAL ENFORCEMENT
298 BROADCAST DR
SPARTANBURG, SC 29303
Email: JNELSONJR PERSONAL INFORMATION
Phone: 864-596-3582
Fax: 864-596-3007

| Vendor Phone Number | Vendor Fax Number | Requisition Number | Buyer |
|---|---|---|---|
| PERSONAL | | 785 | Bennett, Gina |

| Date Ordered | Vendor Number | Freight Method/Terms | Department/Location |
|---|---|---|---|
| 08/20/2024 | 4659 | FOB Destination/NET 30 | ENVIRONMENTAL ENFORCEMENT |

| Item# | Description/PartNo | QTY | UOM | Unit Price | Extended Price |
|---|---|---|---|---|---|
| | CONTRACTORS<br>The Above Purchase Order Number Must Appear On All Correspondence - Packing Sheets And Bills Of Lading | | | | |
| 1 | ESTIMATE# 2423<br>REMOVE ASBESTOS AS LISTED IN THE INSPEXTION PROVIDED AND DEMOLISH STRUCTURE .<br>379 BETHESDA RD SPARTANBURG SC 29307<br>TAX ID PERSONAL<br>Commodity Code: CS0003 CONSTRUCTION - DEMOLITION | 1.0 | EACH | $29,450.00 | $29,450.00 |
| 2 | CONSTRUCTION - DEMOLITION- two more structures were located onsite. Removal and clean up is only required<br>Commodity Code: CS0003 CONSTRUCTION - DEMOLITION | 1.0 | EACH | $4,500.00 | $4,500.00 |
| 3 | **ADDED:** CONSTRUCTION - DEMOLITION- cap and secure open well<br>Commodity Code: CS0003 CONSTRUCTION - DEMOLITION | 1.0 | EACH | $1,500.00 | $1,500.00 |

CHANGE ORDER

By: PERSONAL INFORMATION
Procurement Manager

VENDOR COPY

| | |
|---|---|
| Total Ext. Price | $35,450.00 |
| **PO Total** | **$35,450.00** |

**CHANGES IN PURCHASE ORDER.**

Thisorder is considered a contract. No change may be made in any of the prices, quantities, item description, or any other provision of this order without a prior written change order from the Procurement Director. If this purchase order is a result of a bid award or acceptance of a request for proposals, all conditions, provisions and specifications of the bidor request for proposal along with any contracts executed in connection with the bid award or request for proposals shall become a part of the contract in accordance with the bidnumber or request for proposal number indicated on the order. The contract documents are presented in descending order of priority with the first document listed being of thehighest priority and governing over subsequently listed documents, in case of conflict or ambiguity. The Contract Documents consist of (if applicable): (1) Spartanburg County Contract for Goods and Services or for Professional Services; (2) Bid or Request for Proposal (RFP); (3) Addenda or Addendum to Bid or Request for Proposal; (4) Bid orProposal in response submitted by the Seller; and (5) Spartanburg County Purchase Order. Collectively, these materials shall comprise the "CONTRACT DOCUMENTS." It isthe responsibility of the Seller to insure that description/specifications on the face of the purchase order is in accordance with the bid award or acceptance of request for proposal. Payment will be made upon completion of total order. No partial payments will be made without prior authorization.

**DELIVERY.**

Delivery must be affected within the time agreed upon, but neither party shall be liable for any default hereunder due to unforeseeable contingencies beyond its control and without default or negligence. Seller's default shall not be excused unless written notice of any such contingency is given to Buyer within five (5) days of the time the Seller first receives knowledge of the occurrence thereof.

**TRANSPORTATION CHARGES.**

(a)Transportation will be FOB Destination freight prepaid, except when otherwise stated on the fact of the order. Title does not change hands until satisfactory delivery to Buyer's shipping address as outlined on this order. Shipping discrepancies will be the responsibility of the seller; (b)Seller will pay all transportation charges both ways on material rejected for failure to meet specifications or for wrong or defective material, overshipments, etc.; (c)Parcel Post shipments will be at the risk of the Seller.

**INSPECTION.**

Materials will be received subject to inspection and if found defective or not in accordance with specifications, will be returned at vendor expense.

**PACKING LIST/DELIVERY TICKET.**

Apacking list and/or delivery ticket must be furnished with each shipment indicating name of seller, purchase order number, name and identifying stock number of article, quantity ordered, shipped and back ordered.

**WARRANTIES.**

Seller warrants that all articles, material and work will conform with applicable drawings, specifications, samples and/or other descriptions given to Seller, and will be free from defects. Without limitation of any rights which Buyer may have at law by reason of any breach of warranty, goods which are not as warranted may be returned at Seller's expense at any time within nine months after delivery for either credit or replacement as Buyer may direct.

**MATERIAL, EQUIPMENT AND INSURANCE.**

Unless otherwise specified, Seller is to supply all material and equipment required to execute this order. Any material which Buyer may furnish, on other than a charge basis will beon consignment, and Seller shall pay for such material spoiled by Seller, or not otherwise satisfactorily accounted for. All material and equipment furnished by Buyer shall be protected against loss or damage by insurance acceptable by Buyer.

**CHANGES IN DRAWINGS, SPECIFICATIONS.**

Buyer reserves the right to make changes in the drawings and specifications relating to this order. If any such change causes a substantial variation in the cost of furnishing the goods covered hereby, the price of such goods shall be varied in the same ratio. Any claim hereunder shall be asserted promptly.

**TERMINATION.**

(a)The buyer may terminate work under this order in whole or in part at any time by written notice, including a termination letter sent electronically via email or facsimile with a signature. Such notice shall state the extent and effective date of such termination; and, upon the receipt thereof, the Seller will, as and to the extent directed by the Buyer, stop workunder this order and the placement of further orders or subcontracts hereunder, terminate work under orders and subcontracts outstanding hereunder, and take any necessary action to protect property in the Seller's possession in which the Buyer has or may acquire an interest.

(b)If the parties cannot by negotiation agree within a reasonable time upon the amount of fair compensation to the Seller for such termination, the Buyer in addition to make prompt payment of the amount due for articles delivered or services rendered prior to the effective date of termination, will pay to the Seller the following amounts without duplication:

(1)The contract price for all articles or services which have been completed in accordance with this order and not previously paid for.

(2)(i) The actual costs incurred by the Seller which are properly allocable or apportionable, under recognized commercial accounting practices to the terminated portion of this order, including the cost of discharging liabilities which are so allocable or apportionable, and (ii) a sum equal to 2% of the part of such costs representing the costs of articles or materials not processed by the Seller, plus a sum equal to 3% of the remainder of such costs, but the aggregate of such sums shall not exceed 6% of the whole of such costs. For thepurposes of subdivision (iii) such costs shall exclude any charge for interest on borrowings and shall exclude the costs of discharging liabilities for parts, materials and services not received by Seller before the effective date of termination.

(3)The reasonable costs of the Seller in making settlement hereunder and in protecting property in which the Buyer has or may acquire an interest, payments made under this paragraph (b), exclusive of payments under subparagraph (3), shall not exceed the aggregate price specified in this order less payments otherwise to be made. (c) With the consent of the Buyer, the Seller may retain at an agreed price or sell at an approved price any completed articles, or any articles, materials, work in process or other things the cost ofwhich is allocable or apportionable to this order under paragraph (b)(2) above, and will credit or pay the amounts so agreed or received as the Buyer directs. As directed by the Buyer, the Seller will transfer title to, and make delivery of, any such articles, material work in process or other things not so retained or sold. Appropriate adjustment will be madefor delivery costs or savings therein.

(d)The provisions of this section shall not limit or affect the right of the buyer to terminate this order for the default of the Seller.

**INVENTORY LIABILITY.**

Inthe event of partial or complete cancellation, if this purchase order covers material for production or resale, our liability shall be limited to raw material required for the succeeding 60 days schedule from date of cancellation, and the cost incurred to machine and fabricate of next succeeding 30 days schedule from date of cancellation.

**ACCEPTANCE OF TERMS BY SHIPMENT.**

Shipment of all or any portion of the goods covered by this purchase order shall be deemed an acceptance of the terms and prices set forth herein.

**SHIPPING INSTRUCTIONS.**

Deliver or ship all items in accordance with shipping instructions included herein and as may be included on the face of the order. Do not allow pickups or change of delivery instructions without prior authorization from the Procurement Director.

**ASSIGNMENT.**

Seller shall not assign this order nor any moneys due or to become due hereunder without the prior written consent of Buyer. Any assignments or attempt at assignment made without such consent of Buyer shall be void as to Buyer.

**TAXES.**

Allstate, federal, municipal and other taxes in connection with this order are assumed and must be paid by Seller. Seller will reimburse Buyer and Buyer may charge to Seller or deduct from any sum due or to become due any amounts Buyer may be compelled to pay for or on account of any such taxes.

**COMPLIANCE WITH LAW.**

Goods or services herein ordered shall comply with all Federal, State and local laws.

# Redaction Log

| Reason | Page (# of occurrences) | Description |
|---|---|---|
| PERSONAL INFORMATION | **1** (6) | Pursuant to SC. Code of Laws §30-4-40(a)(2) |